KEEP FOR YOUR RECORDS / DO NOT FILE

Your record-clearing packet

A clear guide to what is included, what you need to do next, and what to keep for your records.

PREPARED FOR	PREPARED ON
REVIEW-SUPPLIED-participant_full_legal_name	September 3, 2026

JURISDICTION	COURT / AGENCY
DC	Not established for this route - ask the clerk or filing office.

CASE / MATTER	REMEDY
Not established for this route - ask the clerk or filing office.	Actual-innocence expungement by motion under D.C. Code § 16-803

WHAT IS INSIDE

01	**Next steps**	Where to go, what to do, and what happens after filing.
02	**Filing checklist**	A final quality-control list before, during, and after filing.
03	**Fees & costs**	Known court or agency fees, payment details, and fee-waiver information.
04	**Court-ready documents**	Your forms, pleadings, motions, orders, and attachments begin after this guide.

IMPORTANT

These supplemental pages are for you. Do not file or submit them to the clerk or court. File only the court-facing documents identified in your packet instructions.

District of Columbia Actual-Innocence Expungement Packet under D.C. Code § 16-803

This packet is prepared for expunging a District of Columbia record on grounds of actual innocence by motion under D.C. Code § 16-803.

THE STATUTORY WARNING, D.C. CODE Sec. 16-803(e). An acquittal or dismissal does not establish a presumption of innocence. You carry the burden of demonstrating, by a preponderance of the evidence, that the offence did not occur or was not committed by you.

This is a prepared set of composed pleading and process pages. No official court form exists for this motion - the statute fixes the motion's content, which is why these pages are composed - and this packet is not legal advice, it is not filed for you, and it does not decide whether the Court will grant relief. Expunging destroys a record; sealing hides it from public view.

KEEP FOR YOUR RECORDS / DO NOT FILE

Next steps

Only the steps that apply to your route appear here.

WHERE TO FILE
Superior Court of the District of Columbia, Criminal Division, through the Seal Team at criminalmotionsealteam@dcsc.gov

FILING METHOD
Not established for this route - ask the clerk or filing office.

DEADLINE
Not established for this route - ask the clerk or filing office.

NEXT EVENT
The Seal Team assigns a motion case number and the court conducts initial review.

WHAT YOU DO, IN ORDER (steps one, two and five are stated by the Criminal Division's own instruction sheet, Rev. April 10, 2024, verified byte-exact for this packet):

STEP ONE. Call (202) 727-4245 to make an appointment with the Metropolitan Police Department (MPD) to request a copy of your arrest history report.

STEP TWO. Request the disposition of your case from DC Superior Court: email criminalcustomerservice@dcsc.gov, or ask in person at the Criminal Division clerk's office, 500 Indiana Avenue NW, Room 4001, Washington, DC, between 8:30 a.m. and 5:00 p.m.

STEP THREE. Fill in every dotted blank in this packet from those records. Do not guess a date, a charge wording or a case number.

STEP FOUR. Sign and date the motion yourself. The platform never signs for you and never dates a signature.

STEP FIVE. Send all your documents - your arrest record, your case disposition, and the motion - to criminalmotionsealteam@dcsc.gov. The Seal Team gives the motion a case number and assigns it to a judge to decide. The instruction sheet states this process can take up to six months. Whether any other filing channel is available is not stated by any held source; ask the clerk's office if email will not work for you.

STEP SIX. Serve a copy of the motion on the prosecuting office, using the service page in this packet, after asking the clerk which office prosecuted your case and its correct service address. The prosecutor need not respond unless the Court orders it.

ONE MOTION PER CASE NUMBER. File one motion per case number in the case being addressed. The filing window is any time.

REPEAT MOTIONS. A second motion no sooner than one year after the first is resolved, and a third and final motion no sooner than one year after the second - except that a motion on different grounds may be filed at any time.

WHEN TO STOP AND GET HELP INSTEAD OF FILING. The last page of this guide lists the stop conditions this route carries. Beyond those, stop and get help if:

- the relief turns on an affirmative evidentiary showing of innocence on disputed facts and you are unsure of your evidence;

KEEP FOR YOUR RECORDS / DO NOT FILE

- a prior motion was denied inside the one-year window;

- immigration, firearm, licensing, security clearance, childcare, healthcare, or law enforcement employment consequences are in play.

THESE ORGANIZATIONS CAN HELP (named, with numbers, on the Criminal Division's own instruction sheet):

- Christian Legal Society - 202-710-0592

- Legal Aid DC - 202-628-1161

- Neighborhood Legal Services Program - 202-832-6577

- Public Defender Service (ask for the Duty Day Attorney for Seal cases) - 202-824-2801

- Rising for Justice - 202-638-4798

KEEP FOR YOUR RECORDS / DO NOT FILE

Filing checklist

Use this page as your final quality-control check.

DOCUMENT CHECK

COURT-FACING DOCUMENT	SIGNED?	COPIES	ATTACH / FILE?
Motion for Expungement on Grounds of Actual Innocence	[ ]	-	Send this to the Seal Team, at the email address on the Next steps page, with your arrest record and your case disposition. Confirm the current filing and copy mechanics with the Criminal Division clerk before you send it.
Prosecutor Service Information	[ ]	-	This is the copy served on the prosecuting office. It carries no caption of its own, only the enclosure text and the service lines.

- Get these before you write anything on the motion.

- 1. YOUR MPD ARREST HISTORY REPORT - from the Metropolitan Police Department, by appointment on (202) 727-4245.

- 2. THE DISPOSITION OF YOUR CASE - from DC Superior Court, by email to criminalcustomerservice@dcsc.gov or in person at 500 Indiana Avenue NW, Room 4001.

- 3. YOUR STATEMENT OF POINTS AND AUTHORITIES, EXHIBITS, AFFIDAVITS AND SUPPORTING DOCUMENTS - the evidence of actual innocence is yours to assemble, and this packet composes none of it.

KEEP FOR YOUR RECORDS / DO NOT FILE

Fees & costs

Separate the cost of your Expungement.ai packet from court, agency, service, certification, and other third-party costs that may apply to your filing.

ESTIMATED OUT-OF-POCKET FILING COST

Not established for this route - ask the clerk or filing office.

Last verified / Official source

Not recorded | Criminal Division clerk's office, 500 Indiana Avenue NW, Room 4001, Washington, DC (202-879-1373), or the Seal Team at criminalmotionsealteam@dcsc.gov

FEE BREAKDOWN

Not established for this route - ask the clerk or filing office.

FEE WAIVER / INDIGENCY

AVAILABILITY

Not established for this route. Ask the same office.

FORM / PROCESS

Not established for this route - ask the clerk or filing office.

WHERE TO SUBMIT

Not established for this route - ask the clerk or filing office.

MONEY. No source this packet is built from states a filing fee, that filing is free, or a fee-waiver procedure for this motion. Before filing, ask the Criminal Division clerk's office, 500 Indiana Avenue NW, Room 4001, Washington, DC (202-879-1373), or the Seal Team at criminalmotionsealteam@dcsc.gov whether any fee applies and, if you cannot pay it, how to ask for a waiver.

WHEN TO STOP AND GET HELP

- The prosecutor opposes the motion, the court orders a response, or the court sets an evidentiary hearing.
  The matter has reached the contested-evidence and merits stage identified by the approved self-help boundary.
- The record is federal, military, tribal, or from another jurisdiction.
  This D.C. Superior Court route does not apply.

SUPERIOR COURT OF THE DISTRICT OF COLUMBIA
CRIMINAL DIVISION

Case number of the case this motion addresses (copy it exactly from the court record):

_____

IN THE MATTER OF THE MOTION OF
REVIEW-SUPPLIED-PARTICIPANT_FULL_LEGAL_NAME, MOVANT

MOTION FOR EXPUNGEMENT OF RECORDS ON GROUNDS OF ACTUAL INNOCENCE UNDER D.C. CODE Sec. 16-803

1. The movant, REVIEW-SUPPLIED-participant_full_legal_name, date of birth REVIEW-SUPPLIED-date_of_birth, moves this Court under D.C. Code Sec. 16-803 to expunge the record of the case identified in the caption above, on grounds of actual innocence.

2. Grounds for eligibility: the case was terminated by the prosecutor or reached a final disposition, did not result in a conviction, and did not result in an acquittal by reason of insanity under D.C. Code Sec. 24-501. The movant asserts, and will demonstrate by a preponderance of the evidence, that the offence did not occur or was not committed by the movant. The movant states the case facts from the court record:

(a) What the movant was charged with, worded exactly as the court record words it:

_____

(b) Disposition of the case - how it ended, and the date of final disposition:

_____

3. The movant's own statement of why the offence did not occur, or why the movant was not the person who committed it, in the movant's own words (state only facts you know first-hand; this packet writes none of these lines for you):

(a) The movant's own words:

_____

(b) The movant's own words (continued):

_____

(c) The movant's own words (continued):

_____

4. Statement of points and authorities, exhibits, affidavits and supporting documents attached to the motion (list what you attach; the movant carries the burden and supplies the supporting material):

(a) Attached:

_____

(b) Attached (continued):

_____

5. Prior expungement motions like this one the movant has filed, and when each was resolved (write NONE if none):

(a) Prior motions, and when each was resolved:

_____

6. The movant therefore asks the Court to expunge the records relating to the case identified above, pursuant to D.C. Code Sec. 16-803.

Signature

REVIEW-SUPPLIED-participant_full_legal_name, Movant

_____

REVIEW-SUPPLIED-PARTICIPANT_FULL_LEGAL_NAME
REVIEW-SUPPLIED-mailing_address
Telephone: REVIEW-SUPPLIED-phone_number
Email: REVIEW-SUPPLIED-email_address

The movant signs and dates this motion personally. Nothing on this page is signed or dated for the movant.

(a) PRINTED NAME: REVIEW-SUPPLIED-participant_full_legal_name

(b) MAILING ADDRESS: REVIEW-SUPPLIED-mailing_address

(c) TELEPHONE: REVIEW-SUPPLIED-phone_number

(d) EMAIL: REVIEW-SUPPLIED-email_address

Enclosed is a copy of the motion filed by REVIEW-SUPPLIED-participant_full_legal_name under D.C. Code Sec. 16-803: MOTION FOR EXPUNGEMENT OF RECORDS ON GROUNDS OF ACTUAL INNOCENCE UNDER D.C. CODE Sec. 16-803.

Under the recorded rule for this motion, the motion is served on the prosecutor, and the prosecutor need not respond unless the Court orders it. Do not expect an opposition by default.

WHICH OFFICE, AND WHERE, IS NOT STATED HERE. Two offices prosecute District of Columbia cases - the United States Attorney's Office for the District of Columbia and the Office of the Attorney General for the District of Columbia - and no source this packet is built from states the rule for which office prosecuted a given case or its correct service address. A guessed recipient in a service instruction is worse than none. Before you serve this copy, ask the Criminal Division clerk's office, 500 Indiana Avenue NW, Room 4001, Washington, DC (202-879-1373), or the Seal Team at criminalmotionsealteam@dcsc.gov which office prosecuted your case and the correct service address, and use exactly what they tell you.

(a) NAME AND MAILING ADDRESS OF THE PROSECUTING OFFICE FOR THE CASE (you write it here before service; the Criminal Division clerk's office can confirm it):

_____

(b) Prosecuting office (continued):

_____

(c) DATE OF SERVICE OF THE COPY:

_____

Signature

REVIEW-SUPPLIED-participant_full_legal_name, Movant

_____

REVIEW-SUPPLIED-PARTICIPANT_FULL_LEGAL_NAME
REVIEW-SUPPLIED-mailing_address
Telephone: REVIEW-SUPPLIED-phone_number
Email: REVIEW-SUPPLIED-email_address

This page is not proof of service and does not say that anything has been served. It is completed and signed by the movant when the copy actually goes out, in the manner the clerk directs. A date or a signature written before the copy goes out would be false.

ABOUT THIS PACKET

Motion for Expungement on Grounds of Actual Innocence, D.C. Code § 16-803

ROUTE

DC:dc_actual_innocence_expungement_16_803

PACKET SPECIFICATION

dc-actual-innocence-expungement v1.0.0

PREPARED FROM VERIFICATION

current-commercial-artifact-review

This packet was prepared from the answers you confirmed at final verification. If any of those answers change, the packet has to be prepared again - a filing built on a superseded answer is worse than no filing.